

THE KING'S BENCH (FAMILY DIVISION)
_____ **Centre**

BETWEEN:

Petitioner/Applicant

- and -

Respondent

-
-

FOAEAA ORDER - AUTHORIZATION

Ex Parte – Locate

Pursuant to section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) authorizing a court official to request information for the **establishment or variation of a support order**

(name, address, e-mail, and telephone number of party filing)

Centre

THE HONOURABLE)
) , the day of , 20__
)

Petitioner/Applicant

– and –

Respondent

ORDER

- 1.0** This matter having proceeded at the Law Courts Complex, 408 York Avenue, Winnipeg, Manitoba, R3C 0P9, at the request of the _____.
- 2.0** On the application of _____ made pursuant to
(Full name of party making the application)
section 7 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada), in relation to the (establishment of a support order/variation of the support provision set out in the order pronounced _____

(specify date)
by _____).
(specify Judge, Court, and province/territory/country)
- 3.0** This application was made *ex parte* (without notice to the other party).

4.0 THIS COURT is satisfied that the sole purpose of this application is to obtain locate information for the purpose of an application to (establish/vary) a support order and the order is not likely to jeopardize the safety or security of any person.

5.0 THIS COURT is also satisfied that in relation to the application to (establish/vary) a support order, reasonable steps have been taken to locate the person identified in the affidavit in support of the section 7 application in respect of whom the applicant is seeking to have a support amount (established/varied) and that the person has not been located.

6.0 THIS COURT ORDERS pursuant to section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) that the Registrar of the Court of King's Bench of Manitoba is authorized to make an application to the Minister of Justice Canada pursuant to section 12 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) to search for and release only the following information below that can be found in federal information banks designated under section 2 of the Release of Information for *Family Orders and Agreements Enforcement Assistance Regulations*, SOR/2023-125:

a) The address of _____
(Name of person to be located)

(Strike out the following if not applicable)

and;

b) the name and address of their employer.

(Strike out paragraph 7 if not applicable)

7.0 THIS COURT ORDERS pursuant to section 11 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) that a notice under section 12.1 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada)

and a copy of this Order shall not be sent by the Minister of Justice Canada to the person whose information is being sought.

8.0 THIS COURT ORDERS pursuant to subsection 13(2) of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) that the information received by the Registrar of the Court of King's Bench of Manitoba from the Minister of Justice Canada and given to the court shall be sealed until further order of the court.

9.0 THIS COURT ORDERS that the issue of disclosure of the information is adjourned pending receipt of the information by the court.

(Date of signature)

(Signature of judge)